

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: May 21, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINE 1	22CV401891	Zowie Mason et al vs Aurelia Amezcua et al	Motion Summary Judgment Scroll down to Line 1 for Tentative Ruling.
LINE 2	23CV424874	Shatonn Woods vs Tuem Ngo et al	Motion to Quash Subpoena & Protective Order OFF CALENDAR. On January 8, 2026, defendants filed a motion to stay deposition, quash subpoena, and protective order. Plaintiff filed opposition papers on May 8, 2026. On May 15, 2026, moving party/Defendants filed a notice of withdrawal for the motion. The motion is WITHDRAWN and MOOT.
LINES 3-4	23CV426924	Robert M. Branch et al vs Spacelink Corporation SV et al	Motion to Compel and Sanctions (Line #3) & Motion to Compel and Sanctions (Line #4) & Scroll down to Lines 3-4 for Tentative Ruling.
LINES 5-6	24CV455059	Niraj Gandhi et al vs Matthew Ginsberg et al	Motion to Intervene and Expunge Lis Pendens (Line #5) & Motion for Protective Order and Request for Sanctions (Line #6) Scroll down to Lines 5-6 for Tentative Ruling.
LINE 7	25CV457476	Cavalry Spv I, Llc vs Gisela Rosas-Deciga	Motion: Admissions Deemed Admitted Scroll down to Line 7 for Tentative Ruling.

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9:01 A.M.			
NULL	NULL	NULL	NULL

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9:00 A.M.

Calendar Line # 1

Case Name Zowie Mason et al vs Aurelia Amezcua et al

Case No. 22CV401891

Motion for Summary Judgment

Before the court is defendants Costco Wholesale Corporation and Ricky Lozano Reyna's motion for summary judgment. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

On or about August 28, 2021, Heidi Maul, Michael Maul, and Lisa Trevino ("Decedents") were traveling eastbound on SR-132. (Complaint, ¶¶14, 16, and 17). At the same time, defendants Aurelia Amezcua ("Amezcua") and Ricky Lazaro Reyna ("Reyna") were traveling in separate vehicles westbound on SR-132. (Complaint, ¶17).

Defendant Reyna was not staying in his lane, which caused other drivers fear and concern. (Complaint, ¶19). To avoid defendant Reyna's unsafe driving, defendant Amezcua attempted to overtake defendant Reyna. (*Id.*). Defendant Amezcua failed to exercise reasonable care when attempting to overtake [defendant Reyna's vehicle] and struck Decedents' vehicle causing Decedents to lose their lives. (Complaint, ¶18).

Defendant Costco Wholesale Corporation ("Costco") owned or controlled the vehicle driven by defendant Reyna. (Complaint, ¶20). Defendant Reyna operated the vehicle with the express or implied authority/ permission of defendant Costco, as an agent of defendant Costco while acting in the course and scope of his agency or employment with defendant Costco. (*Id.*). Defendant Costco knew or should have known defendant Reyna was unfit to operate the vehicle and was negligent in hiring, retaining, training, and entrusting the vehicle to defendant Reyna. (*Id.*).

On July 1, 2022, plaintiffs Zowie Mason, the daughter and stepdaughter of decedents Heidi Maul and Michael Maul; Gilbert Hernandez and Miguel Trevino, sons of decedent Lisa Trevino, (collectively, "Plaintiffs") filed a complaint against defendants Amezcua, Reyna, and Costco asserting causes of action for:

- (1) Negligence
- (2) Wrongful Death

On September 16, 2022, defendant Amezcua filed her answer to Plaintiffs' complaint.

Also on September 16, 2022, defendants Costco and Reyna filed a Judicial Council form cross-complaint against co-defendant Amezcua asserting claims for:

- (1) Indemnification
- (2) Apportionment of Fault
- (3) Contribution

On November 17, 2022, cross-defendant Amezcua filed an answer to Costco and Reyna's cross-complaint.

On December 13, 2022, defendants Costco and Reyna filed an answer to Plaintiffs' complaint.

On December 11, 2023, defendants Costco and Reyna filed the motion now presently before the court, a motion for summary judgment of Plaintiffs' complaint. Hearing on defendants Costco and Reyna's motion has been continued by this court seven times, often at Plaintiffs' request due to Amezcua's criminal prosecution and consequent unavailability for deposition. The original hearing date for this motion was March 5, 2024 and has been continued to May 21, 2024; September 10, 2024; December 12, 2024; April 17, 2025; August 26, 2025; January 6, 2026; and now May 21, 2026.